

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2301537

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: PHAEDRANA NOOHRA

vs.

DEFENDANT: TAMARA WILLAT

NATURE OF PROCEEDINGS: 1) MOTION – PROTECTIVE ORDER -DISCOVERY
FACILITATOR PROGRAM
2) MOTION – SANCTIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff PHAEDRANA NOOHRA filed a motion for protective order on March 30, 2026, pursuant to Cal. Code of Civil Procedure §§ 2025.420, 2030.090, 2031.060 and California Constitution Article I, Section 1. 6. The motion seeks to limit and condition certain discovery requests served by Defendant TAMARA WILLAT that plaintiff believes requests sensitive personal identifying information, third-party data, and confidential materials, the disclosure of which presents disproportionate risk and exceeds the proper scope of discovery.

Defendant responds to the motion arguing the motion is go-around from the Court's order of March 5, 2026, in which the court granted Defendant's motion to compel discovery, ordering Plaintiff to provide code-compliant responses no later than March 30, 2026. Defendant argues that the Plaintiff seeks a protective order directed at the same discovery covered by the March 5 Order, and incorporates the same privilege log dates February 14, 2026, which was addressed by the prior motion ruled in favor of the Defendant.

Furthermore, the Defendant argues that Plaintiff has yet to respond to discovery as ordered on March 5, 2026. Here, prior to the order, Plaintiff's responses were due on October 23, 2025. The court issued an order that plaintiff respond to the outstanding discovery without objection. Filing a motion to work around the order defeats the purpose of , they have been waived" (Exh. B at 5:6 8), and the Court granted precisely that relief because discovery must be free flowing to both parties, without frivolous objections and other motion practice hurdles.

California discovery rules are to be liberally construed in favor of disclosure. Discovery statutes must be interpreted broadly to facilitate the exchange of information between parties. "[A]bsent a showing that substantial interests will be impaired by allowing discovery, liberal policies of discovery rules will generally counsel against overturning a trial court's decision granting discovery and militate in favor of overturning a decision to deny discovery" ([*Flagship Theatres*](#)

of Palm Desert, LLC v. Century Theatres, Inc., 198 Cal.App.4th 1366 (2011), Forthmann v. Boyer, 97 Cal.App.4th 977 (2002)). The statutory provisions governing discovery methods "must be liberally construed in favor of discovery and reviewing courts must not extend statutory limitations upon discovery beyond limits expressed by legislature". (Irvington-Moore, Inc. v. Superior Court, 14 Cal.App.4th 733 (1993)).

While the court will give considerable leeway to *pro per* litigants, they are not entitled to special treatment or leniency based on their self-represented status. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1054, 1056.)

In addition, the motion for a protective order is not timely. A protective order must be sought "promptly," and the moving party bears the burden of demonstrating good cause. (Code Civ. Proc., §§ 2030.090, subd. (a), 2031.060, subd. (a), 2025.420, subd. (a).) Plaintiff filed the motion in March 2026, many months after Defendant first sought the information in October 2025. Plaintiff's unsuccessful opposition to Defendant's does not create an avenue to the filing of a protective order regarding information that is owed to the Defendant pursuant to the court's prior discovery order.

Plaintiff's Motion for a Protective Order is DENIED.

Defendant has incurred \$3,107.85 in attorneys' fees for time spent preparing the opposition, and for time that will be spent preparing for and attending the hearing. Code Civ. Proc., §§ 2025.420, subd. (h) provides that the Court "shall" impose a monetary sanction against any party who unsuccessfully makes a motion for a protective order, unless it finds the party acted with substantial justification or other circumstances make the sanction unjust. (see, Code Civ. Proc., §§ 2025.420, subd. (h), 2030.090, subd. (d), 2031.060, subd. (h).)

Defendant's request for sanctions is GRANTED; however it is discounted down to \$1,650.00, and payable within 30 days of entry of order.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0000974

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: GERALDINE RANDALL

vs.

DEFENDANT: VILLA MARIN
HOMEOWNERS ASSOCIATION

NATURE OF PROCEEDINGS: 1) MOTION – DISMISS
2) MOTION - ENFORCE

RULING

There are two motions on calendar. On May 22, 2026, Defendant Kirk Beales filed a Motion to Enforce a Settlement Agreement pursuant to Code of Civil Procedure §664.6. On April 8, 2026, Plaintiff/Cross-Defendant Geraldine Randall filed a Motion to Dismiss Action.

Both the motions seek multiple forms of relief. These motions are granted in part and denied in part, as more specifically set forth in the “Ruling” section below.

A. Procedural Background

Plaintiff/Cross-Defendant Geraldine Randall (“Randall”) filed her initial Complaint against Defendant/Cross-Complainant Villa Marin Homeowners Association (“HOA”) on September 25, 2023, alleging that she is a homeowner at Villa Marin Properties senior living property, which is managed by the HOA. Randall alleged, among other things, that the HOA failed to purchase insurance as required, retaliated against Randall for raising the insurance issue by rejecting her reasonable maintenance requests and harassing her, mismanaged the skilled nursing facility, breached an initial settlement agreement between the parties, and improperly adopted election rule changes. Randall asserted causes of action against the HOA for violations of the Davis-Stirling Common Interest Development Act, breach of contract, and for declaratory judgment. Randall filed a First Amended Complaint on April 19, 2024, adding HOA Vice President Kirk Beales (“Beales”) as a defendant, additional factual allegations, an additional breach of contract cause of action, and a cause of action for breach of fiduciary duty.

On July 2, 2024, the HOA filed a Cross-Complaint against Randall for breach an initial settlement agreement and breach of covenants in the HOA’s CC&Rs reached between the parties.